

24CHCV04101 24CHCV04101

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Case Number: 24CHCV04101 Hearing Date: September 11, 2026 Dept: F47

Dept. F47

Date: 9/11/26

TRIAL DATE: 3/8/27

Case #24CHCV04101

MOTION TO QUASH

SUBPOENA

Motion filed on 5/4/26.

MOVING PARTY: Defendants Ana Martinez; National Retail
Transportation, Inc. and National Retail Systems, Inc.

RESPONDING PARTY: Plaintiffs Vardan Sargsysan and
Kristine Sargsyan

NOTICE: ok

RELIEF REQUESTED: An order quashing Plaintiffs'
subpoena of records from Defendant Ana Martinez's former employer JB Hunt
Transport Services, Inc.

RULING: The motion is granted.

SUMMARY OF ACTION & PROCEDURAL HISTORY

This personal injury action arises from a two-vehicle collision on 11/22/22 on the Glenoaks Boulevard offramp exit in or near Pacoima/San Fernando, California. Plaintiff Vardan Sargsyan (Vardan) was driving a 2022 Kia Forte with passenger Plaintiff Kristine Sargsyan (Kristine) (collectively, Plaintiffs). Vardan made a left turn when the vehicle collided with Defendant Ana Martinez (Martinez) who was also making a left turn while operating a tractor-trailer owned by Defendants National Retail Transportation, Inc. and National Retail Systems, Inc. On 11/7/24, Plaintiffs filed this action alleging causes of action for Motor Vehicle Negligence and General Negligence. Plaintiffs and Defendants both claim the other is at fault for the accident.

On 4/10/26, Plaintiffs issued a subpoena to Martinez's former employer, JB Hunt Transport Services, Inc. with a production date of 5/8/26, seeking:

"Any and all employment records including, but not limited to, personnel records, workers' compensation files, correspondence, performance evaluations, application for employment, resumes, signed acknowledgment for policies and/or procedures, training records, pre-employment exam records, injury/health, disability records, write-ups, written warnings, disciplinary/investigation reports, incident reports, claims, performance plans, termination/separation agreements, and any other documents related to her driving skills contained in the employment file pertaining to Ana Martinez . . ."

(See Marr Decl., Ex.1)

On 5/4/26, Defendants' counsel requested that Plaintiffs withdraw the subpoena because it was overbroad and invaded Martinez's privacy. After not receiving a response, on the same day, Defendants filed and served the instant motion seeking an order quashing Plaintiffs' subpoena of records from Defendant Ana Martinez's former employer JB Hunt Transport Services, Inc. Plaintiffs have opposed the motion and Defendants have filed a reply to the opposition.

ANALYSIS

CCP 1985.6(f)(1) provides:

"Any employee whose employment

records are sought by a subpoena duces tecum may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and the deposition officer at least five days prior to production. The failure to provide notice to the deposition officer does not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records.”

Contrary to the assertion in the opposition, the instant motion is timely. Five days prior to the production date fell on Sunday, 5/3/26. Therefore, Defendants timely filed and served the motion on the next court day, 5/4/26. See CRC 1.10; CCP 12, 12a, 12b. Plaintiff’s citation to CCP 1005(b) is confusing, at best. (See Opposition, p.4:2-7). The instant motion was filed and served on 5/4/26, well beyond the 16 court days + 2 court days notice required when a motion is served electronically and Plaintiffs had more than the required statutory notice to file and serve an opposition.

The subject subpoena is overbroad and an unreasonable invasion of Martinez’s right to privacy as it seeks any and all employment records regarding Martinez from a prior employer. The opposition seems to concede that Martinez’s records from a prior employer cannot be used as character evidence in this case. (See Opposition, p.6:26-p.7:6). While the opposition argues that Plaintiffs are entitled to obtain evidence regarding Martinez’s driving skills and qualifications as a driver of a semi-truck/tractor trailer, the subject subpoena is not limited to such records. (See Opposition, p.5:13-14).

Moreover, Martinez’s employment records from a prior employer would not necessarily “establish objective facts concerning Martinez’s professional qualifications, training, experience, and familiarity with operating tractor-trailers similar to the vehicle involved in this subject incident.” (See Opposition, p.7:3-5). Martinez could have received additional training and/or experience subsequent to her employment with JB Hunt Transport Services, Inc. and before or during her employment with Defendants National Retail Transportation, Inc. and National Retail Systems, Inc.

Martinez's qualifications and training while she was employed at JB Hunt Transport Services, Inc., a non-party to this case, is not relevant to the liability of the Defendants' in this case. As such, Plaintiffs have failed to justify the subject subpoena's unreasonable invasion into Martinez's privacy.

CONCLUSION

The motion is granted.